

Code of Civil Procedure section 384(b).

4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
5. No appearance is required at the May 27, 2026 hearing.

9. 9:00 AM CASE NUMBER: C24-02285
CASE NAME: DARRIN OHLHAUSER VS. TAILGATERS SPORTS BAR & GRILL
***HEARING ON MOTION IN RE: ORDER SUBSTITUTING SUCCESSOR IN INTEREST**
FILED BY: OHLHAUSER, DARRIN
TENTATIVE RULING:

Plaintiffs Nita Ohlhauser, successor in interest to Darrin Ohlhauser, deceased, filed a Motion for Order Substituting Successor in Interest. The Motion seeks to name decedent's spouse, Nita Ohlhauser as the proper success in interest pursuant to Cal. Code of Civ. Proc. § 377.30. This Motion is unopposed and is therefore **granted**.

The Court will execute the proposed order lodged on December 2, 2025. No appearance is required at the hearing on May 27, 2026. The Court sets a further case management conference for November 24, 2026 at 8:30 a.m. The parties are ordered to file a further Case Management Conference Statement.

10. 9:00 AM CASE NUMBER: C24-02414
CASE NAME: DELLYON ROBINSON VS. FCI LENDER SERVICES, INC.
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: FCI LENDER SERVICES, INC.
TENTATIVE RULING:

Defendant FCI Lender Services, Inc.'s motion for judgment on the pleadings is **granted with leave to amend**.

Plaintiff alleges that Defendant was the loan servicer on his mortgage, but Defendant refused to provide a reinstatement quote when requested. (Comp. ¶15.) Plaintiff sued Defendant for (1) breach of the implied covenant of good faith and fair dealing, (2) violation of Civil Code section 2924c and (3) violation of Business and Professions Code section 17200. Defendant filed this motion for judgment on the pleadings as to each of the three causes of action on the ground that the facts alleged do not state sufficient facts to constitute a cause of action.

Collateral Estoppel

Defendant argues that Plaintiff is collaterally estopped from bringing these claims because he agreed to a stipulated judgment in an unlawful detainer action. In opposition Plaintiff argues both the merits of collateral estoppel and that judicial estoppel precludes Defendant's argument.

Judicial estoppel occurs " 'when " (1) the same party has taken two positions; (2) the positions

were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.” [Citations.]’ [Citations.]” (*Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437, 449.)

In July 2025, Plaintiff filed a motion to consolidate this case with the unlawful detainer proceeding. He then filed an *ex parte* application to advance the hearing date on the motion to consolidate on October 1, 2025. Defendant opposed the application, arguing in part that there were no common issues in the two cases. “It must also be noted that action does not contain any allegations about whether or not the notice requirements of Civil Code section 2924, et seq. have been satisfied in relation to the non-judicial foreclosure sale; rather, it merely concerns Defendant’s alleged duty or duties to provide a reinstatement quote — a completely separate issue of law.” (Opposition to Ex Parte Application p. 6.)

The Court denied the *ex parte* application. There were multiple reasons to deny the application, including the Court’s calendar, the fact that Plaintiff waited until October to bring the request when the motion to continue was filed months earlier and/or because the Court accepted Defendant’s argument that the two cases did not involve common questions of law. The order denying the *ex parte* request did not specify the reasons. It is not clear from the record that the Defendant’s argument that the two cases did not involve common questions of law was the basis for the Court’s denial of the *ex parte* application and thus, the Court finds that judicial estoppel does not apply here.

The Court will now consider whether collateral estoppel applies here. Issue preclusion or collateral estoppel applies when “ ‘First, the issue sought to be precluded from relitigation must be identical to that decided in a former proceeding. Second, this issue must have been actually litigated in the former proceeding. Third, it must have been necessarily decided in the former proceeding. Fourth, the decision in the former proceeding must be final and on the merits. Finally, the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding. [Citations.] The party asserting collateral estoppel bears the burden of establishing these requirements.’ [Citation.]” (*Ayala v. Dawson* (2017) 13 Cal.App.5th 1319, 1326.)

One of the key questions when deciding if collateral estoppel applies is whether the issues were fully and fairly litigated in the first proceeding. “ ‘[A]n unlawful detainer judgment has limited [preclusive] force because it typically follows a summary proceeding focused only on deciding a party’s right to immediate possession of property.’ [Citation.]... ‘[W]here title is acquired through [section 1161a proceedings], courts must make a *limited inquiry* into the basis of the plaintiff’s title.’ [Citation.] ‘Section 1161a provides for a *narrow and sharply focused examination of title*. To establish that he is a proper plaintiff, one who has purchased property at a trustee’s sale and seeks to evict the occupant in possession must show that he acquired the property at a regularly conducted sale and thereafter “duly perfected” his title.’ (*Vella v. Hudgins* (1977) 20 Cal.3d 251, 255, italics added (*Vella*).)” (*Struiksma v. Ocwen Loan Servicing, LLC* (2021) 66 Cal.App.5th 546, 554-555.)

Here, the unlawful detainer action was brought by the owner of the property who had purchased it from a foreclosure sale and brought the action under Code of Civil Procedure section 1161a. “Only claims ‘*directly connected* with the conduct of the sale’ are required to be litigated in a section 1161a proceeding. [Citation.] And the required title inquiry is limited due to the condensed nature of unlawful detainer actions. [Citation.] To preserve the summary nature of section 1161a proceedings, we narrowly construe whether a claim directly relates to the conduct of the sale.” (*Struiksma, supra*, 66 Cal.App.5th at 556.)

“ ‘It is true that where the purchaser at a trustee’s sale proceeds under section 1161a ... he must prove his acquisition of title by purchase at the sale; *but it is only to this limited extent, as provided by the statute, that the title may be litigated in such a proceeding.* ... [T]he plaintiff need only prove a sale in compliance with the statute and deed of trust, followed by purchase at such sale, and the defendant may raise objections only on that phase of the issue of title. Matters affecting the validity of the trust deed or primary obligation itself, or other basic defects in the plaintiff’s title, are neither properly raised in this summary proceeding for possession, nor are they concluded by the judgment.’ [Citation.]” (*Struiksma, supra*, 66 Cal.App.5th at 555.)

In *Struiksma* the plaintiffs lost title to their home in a foreclosure sale. The purchaser from the sale then brought an unlawful detainer action pursuant to Code of Civil Procedure section 1161a. Plaintiffs defaulted in the unlawful detainer case and were evicted. Plaintiffs then filed a lawsuit against their lender and loan servicer. Plaintiffs alleged defendants failed to credit several payments to their loan balance and thus, plaintiffs contended they were never in default and defendants wrongfully foreclosed on the property. (*Id.* at 551.) The trial court found the second lawsuit was barred by collateral estoppel. The court of appeal reversed. It explained that in the unlawful detainer proceeding “the court must determine whether the purchaser duly perfected title. But this is a limited inquiry focusing on how the trustee’s sale is conducted. Issues of title outside this narrow scope need not be raised and are not precluded in subsequent lawsuits.” (*Id.* at 551.)

In *Malkoskie*, the plaintiffs sued for quiet title and related claims seeking to set aside a nonjudicial foreclosure sale and subsequent eviction. (*Malkoskie v. Option One Mortgage Corp.* (2010) 188 Cal.App.4th 96.) After their property was sold through a foreclosure sale, the new owner brought an unlawful detainer action. In that action, plaintiffs raised issues regarding the invalidity of the sale in the answer by alleging affirmative defenses, including that the wrong trustee and beneficiary had instituted the foreclosure process. Ultimately plaintiffs agreed to a stipulated judgment in the unlawful detainer case, giving the new owner possession. The trial court held that collateral estoppel barred the second action. The court of appeal agreed, explaining that “[t]he conduct of the sale and the validity of the resulting transfer of title... were therefore directly in issue in the unlawful detainer case” and thus, the stipulated judgment in the unlawful detainer case barred a subsequent action challenging the new owner’s title to the property. (*Id.* at 976.)

In the unlawful detainer action at issue here, NWL Company alleged that it purchased the property pursuant to a duly noticed trustee’s sale and thus, were entitled to possession under Code of Civil Procedure section 1161a. (RJN 8.) Plaintiff filed an answer, but did not make a general denial. Instead Plaintiff checked the box for specific denials, but failed to include any such denials and did not

include any affirmative defenses. (RJN 9.) Plaintiff and NWL then entered into a stipulated judgment, giving NWL possession. (RJN 10.)

Plaintiff raised essentially no defenses in the unlawful detainer. And the record does not support finding any issues of title were decided beyond those issues necessary for possession. Thus, this case is most similar to *Struikma, supra*, 66 Cal.App.5th 546. Therefore, the Court finds that the inquiry in the unlawful detainer, and thus its preclusive effect, is limited to “focusing on how the trustee’s sale is conducted. Issues of title outside this narrow scope need not be raised and are not precluded in subsequent lawsuits.” Here, by contrast, Plaintiff alleges that Defendant failed to provide a reinstatement quote, which is a completely separate issue of law.

While both the unlawful detainer and this case involve consideration of Civil Code section 2924, that does not mean they involved the same issues. In an unlawful detainer involving a bona fide purchaser, the issues are limited to whether the foreclosure sale itself proceeded as required by law. (See, e.g. *Biancalana v. T.D. Service Co.* (2013) 56 Cal.4th 807, 814.) Sections 2924-2924k include many different requirements for lenders and loan servicers, which are normally outside the scope of an unlawful detainer.

The Court finds that judicial estoppel does not bar Plaintiff’s claims relating to the reinstatement quote.

Cause of Action One

As to the first cause of action for breach of the implied covenant of good faith and fair dealing, Plaintiff acknowledged that it was not properly alleged and requested leave to amend to replace that cause of action with one for interference with contract. Plaintiff’s request is **granted** and therefore, the motion is granted with leave to amend as to cause of action one.

Cause of Action Two

As to the second cause of action for breach of Civil Code section 2924, Defendant argues that Plaintiff has not alleged a cause of action under section 2924c or 2924d. In opposition, Plaintiff focuses on section 2924c and the alleged failure to provide a reinstatement quote.

“Section 2924c, subdivision (a)(1) provides that when a mortgage loan is accelerated as a result of a borrower’s default, the borrower can reinstate the loan by paying all amounts due, ‘other than the portion of principal as would not then be due had no default occurred.’ That is, the borrower can cure the default and reinstate the loan by paying the amount of the default, including fees and costs resulting from the default, rather than the entire accelerated balance. The mortgage lender must inform the borrower of the correct amount due to reinstate the loan [Citation.]” (*Taniguchi v. Restoration Homes LLC* (2019) 43 Cal.App.5th 478, 483-484.) Thus, providing an accurate reinstatement amount is a key component of giving Plaintiff the opportunity to reinstate the loan.

Defendant argues that no such reinstatement quote is required, citing to *Wagma Safi v. Bank*

of Am., N.A. (E.D.Cal. Oct. 9, 2013, No. 2:12-CV-02280-JAM-AC) 2013 U.S.Dist.LEXIS 147005. *Safi* is distinguishable as that case did not address whether a lender or loan servicer must provide a reinstatement quote because there the plaintiff alleged that she knew the actual amount due. (*Id.* at *10-11.)

Here, Plaintiff took out a \$811,539 mortgage in 2022. (RJN 1.) Plaintiff alleges that Defendant was the servicer of the loan. (Comp. ¶13.) Defendant recorded a notice of default on April 15, 2025. (Comp. ¶14.) On August 15, 2024, Plaintiff requested a reinstatement quote from Defendant over the phone, however, Defendant refused to provide a reinstatement quote and thus, Plaintiff was unable to reinstate the loan. (Comp. ¶¶15, 30, 31.)

Defendant argues that the notice of default and notice of sale included the amount owed. The notice of sale listed the total repayment amount of \$1,110,943.70, which is not the same thing as the reinstatement amount. (RJN 5.) The notice of default listed for repayment as \$927,694.43. (RJN 4.) But the notice of default was dated April 15, and Plaintiff requested the reinstatement amount months later on August 15. The reinstatement amount would necessarily increase over time if no payments were made and thus, the amount in April would not necessarily be the same as the amount in August. Therefore, the Court finds that the notice of default and notice of sale do not preclude Plaintiff's claim for the alleged failure to provide a reinstatement amount. The Court also finds that the failure to provide a reinstatement quote when requested is a violation of section 2924c.

Defendant also argues that as a loan servicer, not a lender, it was not required to provide a reinstatement quote. Plaintiff argues that his point of contact on the loan was the loan servicer, however, this is not alleged in the complaint. Since Plaintiff has not alleged that Defendant, the loan servicer, was Plaintiff's point of contact on the loan it is not clear that Defendant was the one required to provide a reinstatement amount. Therefore, the motion is **granted** with leave to amend as to cause of action two.

Cause of Action Three

Defendant argues that the unfair competition claim under Business and Professions Code section 17200 claim fails because Plaintiff has not stated a claim under Civil Code section 2924c or 2924d. The Court agrees that this claim is dependent on Plaintiff stating a claim under Civil Code section 2924c.

Defendant also argues that Plaintiff has not sufficiently alleged damages to state a claim under section 17200. As to this argument, Plaintiff requests leave to amend to allege his damages. The Court grants Plaintiff's request.

The motion for judgment on the pleadings as to cause of action three is **granted** with leave to amend.

Judicial Notice

The parties' requests for judicial notice are granted.

11. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: IWUCHUKWU, DONALD
TENTATIVE RULING:

Defendants, Donald Iwuchukwu and Metu C. Ogike move to stay this action, and simultaneously demur to the complaint filed by plaintiff, Steven A. Smith, Trustee of the Patricia Byrd Canson Living Trust, ("Plaintiff") dated August 13, 2023. The motion to stay is **denied** and the demurrer is **overruled**, as discussed below. Defendants shall file and serve their answers on or before June 8, 2026.

I. Background

Plaintiff is the brother of decedent, Patricia Byrd Canson, who died on August 17, 2023, at the age of 80, having no children and having been predeceased by her husband, Clarence.

Plaintiff filed this action in his capacity as trustee, on October 28, 2024 against the moving defendants and Aurin Canson. Plaintiff alleges that defendants conspired to (1) to convert funds from the estate and trust; (2) to challenge plaintiff's position as Trustee, and (3) hide the conversion and wrest control of Ms. Canson's estate and trust. (See Complaint, ¶¶14-15, 32, 49.)

Plaintiff alleges that Iwuchukwu, acting in the capacity of Ms. Canson's attorney with respect to a 2016 foreclosure of her home at 10 Powder Bowl Court in Richmond, used the representation as an opportunity to steal from Ms. Canson. For example, after the property was sold, Ms. Canson was charged a hold-back and 10% for attorney's fees, and Iwuchukwu arranged for a "certified check" to Ms. Canson for the excess amount. The check, which was dated March 9, 2017, was for \$204,347.50.

Ms. Canson did not ever cash the check. Instead, she informed plaintiff where he could find it in her home, which he did and confirmed by text message that he had found it. (Complaint, Ex. C.) Before it could be cashed, however, defendants withdrew the check. (Complaint, ¶¶57-63.)

Defendants, in addition to converting Ms. Canson's personal property directly, attempted to serve their own interests by fraudulently installing themselves as the representative, trustee, and/or beneficiary of Ms. Canson's estate and representing themselves and/or their agents as Ms. Canson's personal representative in dealing with third party financial institutions that hold Ms. Canson's property, and by creating a trust that names Donald Iwuchukwu as the trustee in order to bill the estate for their work, and by denying Ms. Canson and Ms. Canson's 2023 Trust and her heirs and beneficiaries the benefit of the *res* of the 2023 Trust. (Complaint, ¶65.)

In response to the complaint, defendants Iwuchukwu; Ogike; and Anyiam each brought an anti-SLAPP motion to strike the complaint, which were all denied by an Order filed on October 29, 2025, which was not appealed. Following the Order, Anyiam answered the complaint, but Iwuchukwu and Ogike filed this demurrer and motion to stay.

Plaintiff opposes the demurrer and the motion to stay. At the time of writing, no reply has